

26STCP01903 26STCP01903

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-09-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C509%2C09%2F18%2F2026

Source SHA-256: 7eb8558c4be27ff8afc8f281a3274262915a05da6a7b645a9cb3ab4fdf2ba940

Case Number: 26STCP01903 Hearing Date: September 18, 2026 Dept: 509

Triple Tigress, LLC v. Village Food and Beverage, LLC, et al.

(1) DEMURRER TO COMPLAINT

(2) MOTION TO STRIKE

MOVING PARTY: Defendants Village Food and Beverage, LLC; Bowler Family Holdings, LLC; and Larchmont Holdings, LLC

RESPONDING PARTY(S): Plaintiff Triple Tigress, LLC

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Triple Tigress, LLC (Plaintiff) alleges it has a nine percent membership interest in defendant Village Food and Beverage, LLC (VFB). Plaintiff asserts VFB failed to provide financial statements and quarterly reports for the past four years. During that time VFB, Bowler Holdings LLC (Bowler) and Larchmont Holdings LLC (Larchmont, collectively, Defendants) made unauthorized changes to the membership structure by stripping Plaintiff of two percent of its membership interest. Plaintiff now brings this action asserting causes of action for: (1) violation of Cal. Corp. Code § 25401 against Defendants; (2) violation of Cal. Corp. Code § 17704.10 against Bowler and Larchmont; (3) breach of fiduciary duty against Bowler and Larchmont; and (4) breach of contract against VFB.

Now, VFB demurs to the first cause of action in the complaint. Bowler and Larchmont demur to the first, second and third causes of action. Additionally, Defendants move to strike various allegations from the complaint. Plaintiff opposed.

TENTATIVE RULING:

Defendants' Demurrer to the First Cause of Action is SUSTAINED WITH 30 DAYS LEAVE TO AMEND.

Bowler and Larchmont's Demurrer to the Second Cause of Action is OVERRULED.

Bowler and Larchmont's Demurrer to the Third Cause of Action is SUSTAINED. Whether leave to amend the third cause of action is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful

amendment is reasonably possible.

Defendant's Motion to Strike is GRANTED IN PART.

Moving parties are ordered to give notice, unless waived.

DISCUSSION:

Demurrer to Complaint

I. Meet and Confer

The Declaration of attorney John A. Schlaff does not reflect that the meet and confer requirement was satisfied. The Schlaff Declaration only attests to email conversations with no telephonic meet and confer taking place. This is insufficient to satisfy the requirements to meet either telephonically or in person as required by Code of Civil Procedure, section 430.41.

However, failure to comply with the meet and confer requirements alone does not defeat a demurrer or motion to strike. (Code Civ. Proc. §430.41, subd. (a)(4); Code Civ. Proc. §435.5, subd. (a)(4).) In the interest of judicial economy, the Court exercises its discretion to address the motion on its merits.

II. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, at p. 747.) "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

III. Analysis

VFB demurs to the first cause of action in the complaint. Bowler and Larchmont demur to the first, second, and third causes of action in the complaint.

As an initial note, the Court OVERRULES Defendants' demurrer for uncertainty on the grounds that (a) demurrers for uncertainty are disfavored and should only be sustained where the complaint is so uncertain that the demurring defendant cannot reasonably respond thereto (see, e.g., Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616); and (b) here, Plaintiff's complaint is not so uncertain that Defendants cannot reasonably respond thereto. Moreover, even if the pleading is somewhat vague, "ambiguities can be clarified under modern discovery procedures." (Ibid.)

The Court now addresses each cause of action in turn.

1. First Cause of Action (Violation of Corporations Code, Section 25401)

Corporations Code, section 25401 makes it “unlawful for any person to offer or sell a security in this state, or to buy or offer to buy a security in this state, by means of any written or oral communication that includes an untrue statement of a material fact or omits to state a material fact necessary to make the statements made, in the light of the circumstances under which the statements were made, not misleading.”

Defendants argue that Plaintiff has failed to sufficiently allege this cause of action.

A. The Cause of Action is Insufficiently Pled As to VFB

First, VFB argues that, because Plaintiff still owns the shares at issue, it is limited to rescission as its sole remedy. (Mot. at p. 5.) However, “[a] demurrer is not the appropriate vehicle to challenge a portion of a cause of action demanding an improper remedy.” (Caliber Bodyworks, Inc. v. Superior Court (2005) 134 Cal.App.4th 365, 384; Greenup v. Rodman (1986) 42 Cal.3d 822, 826 [“a general demurrer will not lie for a defective prayer alone.”]) Instead, such challenges are left to other motion types. Plaintiff’s cause of action is sufficient to support a theory of recovery. [FN 1]

Next VFB, argues that “the Complaint fails to plead fraud with the particularity required by law.” (Not. of Mot.) The Court disagrees.

Sections 25401 and 25501 differ from common law negligent misrepresentation in that: (1) proof of reliance is not required, (2) although the fact misrepresented or omitted must be ‘material,’ no proof of causation is required, and (3) plaintiff need not plead defendant’s negligence.

...

Section 25401 only applies to an ‘untrue statement of material fact’ or an omission to state a ‘material fact In order to make the statements made, in light of the circumstances under which they are made, Not misleading.’ Section 25401 does not apply to simple nondisclosure.

(Bowden v. Robinson (1977) 67 Cal.App.3d 705, 715-717, internal citations omitted.)

Here, the complaint alleges that VFB agreed to the Membership Interest Purchase Agreement (MIPA) and later failed to comply. (Compl. ¶¶40-42.) Generally, terms of a contract are not facts. A fact is “[s]omething that has actual existence ... an occurrence, quality, or relation the reality of which is manifest in experience or may be inferred with certainty.” (Kelly v. William Morrow & Co. (1986) 186 Cal.App.3d 1625, 1630.) However, “a promise made without any intention to perform it may constitute fraud. In other words, a promise to do something necessarily implies the intention to perform, and where such intention is absent, there is a misrepresentation of fact, which is actionable fraud.” (Cicone v. URS Corp. (1986) 183 Cal.App.3d 194, 203; see People v. Butler (2012) 212 Cal.App.4th 404, 422 [“it seems sensible, notwithstanding the Civil Code distinction between representations of fact and promises, that section 25401 applies to a stark case in which a seller of securities has either no intention or no ability to ever fulfill the promises made in the security to the investor.”]) Here, Plaintiff alleges VFB made a “promise that [Plaintiff] would receive profits ‘in proportion to the ratio of [its] ownership share.’ VFB and Managing Members promised away those potential profits and never intended to share these profits with Tigress.” (Compl. ¶41.) However, this is merely a conclusory statement, and the Court considers “all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest, supra, 5 Cal.App.3d at p. 591.)

Instead, the facts alleged do not support this conclusion. Plaintiff alleges that “Managing Members offered a Restaurant manager ‘the first \$100k in profits’ if he ‘could make [the Restaurant] profitable’” directly contradicting the “the MIPA’s provision that ‘[d]istribution of profits shall be made in proportion to the ratio of each Party’s ownership share.’” (Compl. ¶29.) First, Bowler and Larchmont, not VFB, made this representation to the potential employee. Second, there are no allegations that Plaintiff did not receive the share he was entitled to or that this alleged deal with the manager even occurred. All that is demonstrated by this allegation is that Bowler and Larchmont discussed compensation with a potential employee that may or may not have been compliant with the MIPA signed between Plaintiff and VFB. This certainly does not demonstrate that VFB never intended to comply with the terms of the MIPA. All other allegations fair no better. In the end, there are no factual allegations that VFB never intended to comply with the MIPA.

Accordingly, VFB’s Demurrer to the First Cause of Action is SUSTAINED. Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Plaintiff requests leave to amend to allow Plaintiff to clarify its allegations that Defendants never intended to fulfill the promises in the MIPA. (Opp. at pp. 7:28-8:1.) Pursuant to this request, Plaintiff is given 30 DAYS LEAVE TO AMEND.

B. The Cause of Action is Insufficient Against Bowler and Larchmont

“Section 25401 makes it unlawful ‘for any person to offer or sell a security in this state’ by means of untrue statements or omissions of material fact. Section 25501 provides that any person who violates section 25401 ‘shall be liable to the person who purchases a security from him ..., who may sue either for rescission or for damages.’” (Apollo Capital Fund, LLC v. Roth Capital Partners, LLC (2007) 158 Cal.App.4th 226, 252–253.) “Section 25501 on its face requires privity between the plaintiff and the defendant.” (Id. at p. 253.) Here, there is no dispute that the seller of the membership interest is solely VFB. (Compl. ¶40, Ex. 1.) Neither Bowler nor Larchmont sold the membership interest nor have privity with Plaintiff.

In opposition, Plaintiff cites Corporations Code, section 25504 for the proposition that Bowler and Larchmont are liable for VFB’s violation under section 25401. Section 25504 states:

Every person who directly or indirectly controls a person liable under Section 25501 or 25503 . . . are also liable jointly and severally with and to the same extent as such person, unless the other person who is so liable had no knowledge of or reasonable grounds to believe in the existence of the facts by reason of which the liability is alleged to exist.

(Corp. Code, § 25504.)

However, as discussed above, Plaintiff has not demonstrated that VFB violated Section 25401. As Bowler and Larchmont’s liability rests on VFB’s violation of Section 25401, the demurrer must be sustained.

Accordingly, Bowler and Larchmont’s demurrer to the first cause of action is SUSTAINED. Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

Assuming Plaintiff can successfully amend the complaint to allege a violation of Section 25401 against VFB, it is likely Plaintiff could likewise amend the complaint against Bowler and Larchmont. The crux of the issue would land at whether Bowler and Larchmont “directly or indirectly controls” VFB. While currently, the complaint does not Plaintiff allege that Bowler and Larchmont directly or indirectly controlled VFB at the time the MIPA was signed, some control may be implied from their position as managing members. It appears, at least reasonably possible, that Plaintiff can file a successful amendment. Accordingly, Plaintiff is given 30 DAYS LEAVE TO AMEND.

2. Second Cause of Action (Violation of Corporations Code, section 17704.10)

Bowler and Larchmont demur to the second cause of action on the ground that it fails to state facts sufficient to constitute a cause of action.

As an initial matter, Defendants' notice of motion only indicated the motion was brought by Larchmont, not Bowler and Larchmont. (Not. of Mot. at p. 3.) Typically, the notice of motion controls the proceedings. (See e.g. *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.) However, "omission in the notice may be overlooked if the supporting papers make clear the grounds for the relief sought." (Ibid.) From the memorandum of points and authorities, it is clear that Bowler and Larchmont are the proper demurring parties. In opposition, Plaintiff addresses all arguments presented in Defendants' memorandum in which it is clear the demurring parties are both Bowler and Larchmont. Therefore, the Court considers both Bowler and Larchmont the demurring parties.

Now, Bowler and Larchmont demur to the second cause of action on grounds that "the Complaint does not allege that Bowler Holdings or Larchmont Holdings, as distinct entities, possess and have withheld VFB's records." (Mot. at p. 8:4-6.) The Court disagrees.

Corporations Code, section 17704.10 states:

Upon the request of a member or transferee, for purposes reasonably related to the interest of that person as a member or a transferee, a manager or, if the limited liability company is member-managed, a member in possession of the requested information, shall promptly deliver, in writing, to the member or transferee, at the expense of the limited liability company, a copy of the information required to be maintained by paragraphs (1), (2), and (4) of subdivision (d) of Section 17701.13, and any written operating agreement of the limited liability company.

(Corp. Code § 17704.10, emphasis added.)

Here, the complaint alleges "Tigress repeatedly asked VFB, through its Managing Members, for access to various financial records over the course of four years." (Compl. ¶49.) "VFB and its Managing Members failed to provide access to this information." (Compl. ¶50; see ¶14.) As Bowler and Larchmont are identified as the Managing Members, these allegations are sufficient to support the cause of action for violation of Section 17704.10. The Court recognizes Bowler and Larchmont's argument that the complaint does not explicitly state that Bowler and Larchmont had access to this information. However, considering the totality of the allegations liberally and in context, it is apparent that Plaintiff alleges Bowler and Larchmont had access to this information as managing members. Therefore, Plaintiff has sufficiently alleged that Bowler and Larchmont violated Section 17704.10

Accordingly, Bowler and Larchmont's Demurrer to the Second Cause of Action is **OVERRULED**.

3. Third Cause of Action (Breach of Fiduciary Duty)

To state a claim for breach of fiduciary duty a plaintiff must plead "the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach." (*Thomson v. Canyon* (2011) 198 Cal.App.4th 594, 604.) Here, Bowler and Larchmont demur on grounds that the complaint fails to allege factual allegations of any breach of the fiduciary duties. The Court agrees.

The fiduciary duties Bowler and Larchmont owed to Plaintiff are outlined in Corporations Code, section 17704.09. [FN 2] (Compl., Ex. 2 at §4(e), ["This agreement will be construed and enforced in accordance with the laws of the United States and the State of California."]) Corporations Code, section 17704.09 states:

a) The fiduciary duties that a member owes to a member-managed limited liability company and the other members of the limited liability company are the duties of loyalty and care under subdivisions (b) and (c).

b) A member's duty of loyalty to the limited liability company and the other members is limited to the following:

1. To account to the limited liability company and hold as trustee for it any property, profit, or benefit derived by the member in the conduct and winding up of the activities of a limited liability company or derived from a use by the member of a limited liability company property, including the appropriation of a limited liability company opportunity.

2. To refrain from dealing with the limited liability company in the conduct or winding up of the activities of the limited liability company as or on behalf of a person having an interest adverse to the limited liability company.

3. To refrain from competing with the limited liability company in the conduct or winding up of the activities of the limited liability company.

c) A member's duty of care to a limited liability company and the other members in the conduct and winding up of the activities of the limited liability company is limited to refraining from engaging in grossly negligent or reckless conduct, intentional misconduct, or a knowing violation of law.

None of the allegations in the complaint appear to fall into a category outlined by Section 17704.09. Plaintiff alleges that "Managing Members breached these duties by refusing to provide access to Company financials, attempting to reduce Tigress's interest in VFB, promising Company profit to third parties without consent, and willfully blocking a deal that all members desired by trying to enforce illegal and unnecessary terms at the last minute." (Compl. ¶155.) None of the allegations violate the obligations imposed by Section 17704.09. In opposition, Plaintiff argues that "these allegations plead breaches that do not sound in simple nonperformance of contractual reporting or payment terms, but in fiduciary disloyalty, lack of good faith, concealment, conflicted process, and diversion of corporate benefits—wrongs actionable independent of the MIPA." (Opp. at p. 10:3-6.) However, California law enumerates specific conduct that rises to the breach of a fiduciary duty owed among limited liability company members. Plaintiff has failed to allege such conduct.

Accordingly, Bowler and Larchmont's demurrer to the third cause of action is SUSTAINED. Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Motion to Strike

I. Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Pro., § 436.)

II. Analysis

Here, Defendant seeks to strike paragraph 58 from the complaint, paragraphs 2-4 of the prayer, and paragraphs 1-3 of the Prayer for Relief as they relate to the second cause of action. (Not of Mot.)

As an initial matter, paragraph 58 is a part of the third cause of action which has been sustained on the concurrent demurrer. As a result, the motion to strike paragraph 58 from the complaint is MOOT.

Next, the request for punitive damages and disgorgement was solely requested in the third cause of action for breach of fiduciary duty. No other cause of action supports punitive damages. (See e.g. Opp. at p. 11:12-13.) As such, these requests rise and fall with the third cause of action. Accordingly, the Motion to Strike the request for punitive damages in paragraph 2 of the prayer and for disgorgement in paragraph 3 is GRANTED. Whether leave to amend is given depends on whether leave to amend is given as to the third cause of action.

Further, "Plaintiff is willing to amend the Prayer to specify prejudgment interest at 7% per annum" pursuant to the Defendants request. Accordingly, the Motion to Strike Paragraph 4 of the prayer is GRANTED WITH 30 DAYS LEAVE TO AMEND.

Finally, as to paragraph 1 of the prayer, Defendants' motion to strike is inappropriate. Paragraph 1 seeks "compensatory damages in an amount according to proof, but not less than the sum of \$67,500." (Compl. Prayer, ¶1.) There can be no doubt that this request is proper as compensatory damages is proper relief for a breach of contract as alleged in the fourth cause of action. The Court does not strike general allegations and prayers for relief where they are supported somewhere in the Complaint. (Triodyne, Inc. v. Sup. Ct. (1966) 240 Cal.App.2d 536, 542.) Accordingly, Defendants motion to strike paragraph 1 of the complaint is DENIED.

IT IS SO ORDERED.

Dated: September 18, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Nevertheless, because Plaintiff has been given leave to amend this cause of action, Plaintiff may take this as an opportunity to plead rescission as a remedy should it choose to do so.

FN 2 - The Court does not find, and no parties argue, the MIPA or any operating agreement have provisions that expands these fiduciary duties beyond those enumerated in Section 17704.09.